

Court No. - 3

Case :- WRIT - C No. - 3127 of 2022

Petitioner :- Malay Sonkar

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Udayveer Singh, Ambrish Kumar

Counsel for Respondent :- C.S.C., Arti Raj, Gaurav Singh

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard learned counsel for the petitioner, learned Standing Counsel for the respondent-State and Shri Gaurav Singh, learned counsel for respondent nos.3, 5 and 6.

This writ petition has been filed to quash the recovery notice dated 31.07.2021 issued by the respondent no.5 against the petitioner for the alleged theft of electricity.

Learned counsel for respondent nos.3, 5 and 6 states on instructions that the petitioner may move his objection under clause 6.8 of the Electricity Supply Code, 2005, which shall be considered and an appropriate order, in accordance with law, shall be passed by the respondent no.5 within a time bound period, after affording opportunity of hearing to the petitioner.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, this writ petition is **disposed of** giving liberty to the petitioner to submit his objection before the respondent no.5 within three weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted by the petitioner before the respondent no.5 within the stipulated period, it shall be decided by the respondent no.5 in accordance with law, within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

Order Date :- 22.4.2022

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